

25SMCV04064 25SMCV04064

County: los-angeles

Division: Civil Law and Motion

Department: 207

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Case Number: 25SMCV04064 Hearing Date: July 9, 2026 Dept: 207

TENTATIVE

RULING

DEPARTMENT

207

HEARING DATE

July

9, 2026

CASE NUMBER

25SMCV04064

MOTION

Motion

to Serve Defendant by Publication

MOVING PARTY

Plaintiff

Ruslan Magidov

OPPOSING PARTY

none

MOTION

This case arises from a dispute between real estate business partners.

On August 6, 2025, Plaintiff Ruslan Magidov ("Plaintiff") filed suit against Defendant Hasib Siddique ("Defendant") alleging twelve causes of action for (1) breach of contract; (2) breach of the covenant of good faith and fair dealing; (3) breach of fiduciary duty; (4) equitable indemnity; (5) intentional misrepresentation; (6) conversion; (7) unjust enrichment; (8) replevin; (9) civil theft (Penal Code 496(c)); (10) intentional infliction of emotional distress; (11) extortion/coercion; and (12) declaratory relief.

Service was purportedly effectuated on Defendant via substitute service on a co-occupant of Defendant's residence. But on December 18, 2025, the Court granted Defendant's motion to quash the service of the summons on the grounds that Defendant's declaration and exhibits adequately rebutted the presumption of proper service and Plaintiff did not meet his burden of proof to demonstrate otherwise.

Plaintiff now moves for an order to serve Defendant by publication.[1] The motion is unopposed.

LEGAL STANDARD

"In the absence of a voluntary submission to the authority of the court, compliance with the statutes governing service of process is essential to establish that court's personal jurisdiction over a defendant." (Dill v. Berquist Construction Co. (1994) 24 Cal.App.4th 1426, 1439–1440.) "In order to obtain in personam jurisdiction through any form of constructive service there must be strict compliance with the requisite statutory procedures. (Zirbes v. Stratton (1986) 187 Cal.App.3d 1407, 1417, quoting Stamps v. Superior Court (1971) 14 Cal.App.3d 108, 110.)

For service on persons within California, generally, service of summons and complaint must be done by personal service. (Code Civ. Proc., § 415.10.) However, "[i]f a copy of the summons and complaint cannot with reasonable diligence be personally delivered to the

person to be served," a plaintiff may serve an individual defendant "by leaving a copy of the summons and complaint at the person's dwelling house, usual place of abode, usual place of business, or usual mailing address . . . , in the presence of a competent member of the household or a person apparently in charge of his or her office, place of business, or usual mailing address . . . , at least 18 years of age, who shall be informed of the contents thereof, and by thereafter mailing a copy of the summons and of the complaint by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons and complaint were left." (Code Civ. Proc., § 415.20, subd.

(b).)

A summons may also be served within the state by mailing the summons and complaint with a notice and acknowledgment of receipt and a return envelope, postage prepaid, addressed to the sender. (Code Civ. Proc., § 415.30, subd. (a).) Such service is deemed complete on the date the written acknowledgement of receipt of summons is executed, if such acknowledgment is thereafter returned to the sender. (Code Civ. Proc., § 415.30, subd. (c).) If the person to whom the summons, complaint, and notice are mailed fails to complete and return the acknowledgement within 20 days, that person shall be liable for reasonable expenses thereafter incurred in serving or attempting to serve them by another method. (Code Civ. Proc., § 415.30, subd. (d).)

Further, "[a] summons may be served by publication if upon affidavit it appears to the satisfaction of the court in which the action is pending that the party to be served cannot with reasonable diligence be served in another manner specified in this article[.]" (Code Civ. Proc., § 415.50, subd. (a).) But "[i]f a defendant's address is ascertainable, a method of service superior to publication must be employed, because constitutional principles of due process of law, as well as the authorizing statute, require that service by publication be utilized only as a last resort." (Watts v. Crawford (1995) 10 Cal.4th 743, 749, fn. 5.)

Finally, "if a plaintiff, despite exercising reasonable diligence, has been unable to effect service of the summons by any of the methods authorized under this chapter, the court in which the action is pending may, upon motion, direct that summons be served in a manner that is reasonably calculated to give actual notice to the party to be served, including by electronic mail or other electronic technology, and that proof of such service be made as prescribed by the court." (Code Civ. Proc., § 413.30, subd.

(a)(1).) "A plaintiff seeking to establish reasonable diligence under this section shall set forth facts detailing all attempts to serve the defendant by each of the methods prescribed by statute, including facts demonstrating why each method was unsuccessful at every address or location where the defendant is likely to be found.

ANALYSIS

With regard to diligence, Plaintiff advances the attorney Declaration of Nannina L. Angioni, which provides:[2]

2. My office representes (sic) Plaintiff in this action and also represents Plaintiff as a defendant in the matter entitled Palm Springs Industrial Dev., LP v. Perfection Holdings, LLC, et al., Los Angeles Superior Court case number 25VECV01235 ("Palm Springs"). Based on my representation of Plaintiff in the Palm Springs action, I am aware that Defendant Hasib Siddique ("Defendant") is likewise named as a defendant in that same action. Through my representation of Plaintiff in the Palm Springs action, I became aware that Mr. Michael Finley ("Mr. Finley") represented Defendant in that matter. Based on that understanding, on September 9, 2025, I emailed Mr. Finley copies of the Summons and Complaint for this matter and requested that Mr. Finley confirm he represented Defendant in this action as well. I also requested Mr. Finley to accept service of process on behalf of Defendant. A true and correct copy of said correspondence is attached hereto as Exhibit A.

3. I did not reveive (sic) an executed Notice and Acknowledgment of Receipt from Mr. Finley.

4. On October 31, 2025, I received an email from Mr. Finley responding to my September 9, 2025 email described above. In that email, Mr. Finley represented to me that he was representing Defendant in this action. Mr. Finley's email communication also outlined a number of points regarding Plaintiff's Complaint and he requested the parties meet and confer on what he represented to me were Defendant's anticipated pleading issues. A true and correct copy of Mr. Finley's response that I received is attached hereto as Exhibit A.

5. Despite requesting to meet and confer regarding the allegations within Plaintiff's Complaint, Mr. Finley did not tell me that he would accept service of the Summons and Complaint on behalf of

Defendant, nor did Mr. Finley return an executed Notice and Acknowledgment of Receipt to me or my office.

6. My firm subscribes to LexisNexis legal research and public-records investigative databases and I, along with members of my firm, use these tools in the ordinary course of business. I instructed a member of my firm to utilize LexisNexis public records and investigative (sic) tools to identify and confirm Defendant's current residence address.

7. After obtaining Defendant's current address, my firm retained Janney & Janney Legal Support, a registered California process server, in an attempt to personally serve Defendant at the address my firm had discovered as a result of the LexisNexis search.

8. On or about October 7, 2025, my office received a document titled "Proof of Service of Summons" and "Declaration of Reasonable Diligence" from Janney & Janney Legal Support. A true and correct copy of such document that my office received is attached hereto as Exhibit B.

9. Thereafter, on or about November 6, 2025, Defendant served my office with a Motion to Quash Service of Summons. I personally reviewed the Motion in the course of representing Plaintiff in this action. Based on my review of the Motion, Defendant challenged the purported service reflected in the Janney & Janney Legal Support Proof of Service.

10. On or about December (sic) 18, 2025, the Court held the hearing for Defendant's Motion to Quash Service of Summons, which a member of my firm, Ali Spina, attended virtually via LA Court Connect on behalf of Plaintiff. Shortly thereafter, the Court issued a Minute Order in connection with the hearing. I reviewed the Court's Minute Order in connection with my representation of Plaintiff in this action. Based on my review, I learned that the Court granted Defendant's Motion to Quash Service of Summons.

11. On December 18, 2025, I again emailed Defendant's counsel, Mr. Finley, copies of the Summons and Complaint. I again requested Mr. Finley to accept service on behalf of Defendant and return a signed Notice and Acknowledgment of Service. A true and correct copy of said correspondence is attached hereto as Exhibit C.

12. I did not receive a signed Notice and Acknowledgment of Service from Mr. Finley after my December 18, 2025 request.

13. Shortly thereafter my firm retained One Legal, a licensed California process service company in another attempt to personally serve Defendant with the Summons and Complaint in this matter.

14. As part of its retained services, One Legal advised my office that it would undertake skiptracing (sic) and related investigative efforts in connection with its attempts to personally serve Defendant.

15. On or about January 20, 2026, my office received a document titled "Non Service Report" and a document titled "Accountability Report" from One Legal. A true and correct copy of the Accountability Report that my office received is attached hereto as Exhibit D. A true and correct copy of the Non Service Report that my office received is attached hereto as Exhibit E.

16. I also directed a paralegal in my deposit the Summons and Complaint, together with a Notice and Acknowledgment of Receipt in the mail, with a fully prepaid postage with the U.S. Postal Service so as to mail said documents directly to Defendant at his residence address. In addition, my office also mailed the Complaint, together with a Notice and Acknowledgment of Receipt, to Defendant at the address listed on Defendant's driver's license of which my client has a copy. My firm did not receive an executed acknowledgment of service from Defendant nor any other acknowledgment confirming receipt of service through U.S. Mail.

17. My office separately noticed Defendant's in-person deposition in the Palm Springs matter for April 14, 2026. In connection with that deposition, Mr. Finley informed me that the selected date was convenient for Defendant and I did not receive an objection to the deposition date. Based on those representations made to me, I believed that Defendant would appear for the April 14, 2026 deposition.

18. A member of my office, Ali Spina, appeared at the scheduled deposition on behalf of Plaintiff, and was prepared to personally serve Defendant in connection with this matter. Despite my office setting the deposition for a date Defendant's attorney had confirmed worked for Defendant's

deposition (after prior attempts to schedule and reschedule this deposition), Defendant failed to appear for deposition as noticed.

19. Attached hereto at Exhibit F is a true and correct copy of the Court Reporter's transcript and Declaration in RE Non-Appearance of Defendant at the April 14, 2026 scheduled deposition which confirms Defendant's failure to appear.

20. Despite my firm's extensive, systematic, and repeated efforts to serve Defendant through all practical means reasonably available, my office has been unable to effectuate service on Defendant.

(Angioni
Decl. ¶¶ 2-20.)

Thus, the Angioni Declaration demonstrates that despite reasonable diligence, including mailing a notice and acknowledgment of receipt to Defendant's residential address, and an attempt to personally serve Defendant at an in-person deposition for another matter, Plaintiff has been unable to serve Defendant.

Therefore, the Court agrees that service by publication is warranted. In that regard, Plaintiff requests to publish the summons in either the Los Angeles Times or the Antelope Valley Press.

Given that Defendant appears to reside in Palmdale, the Court agrees that either of these two proposed publications are calculated to most likely give Defendant notice of the instant lawsuit, which Defendant is likely aware of anyway, by virtue of Plaintiff's counsel's email communications with Defendant's counsel.

CONCLUSION AND ORDER

For the reasons stated, the Court grants Plaintiff's request to serve Defendant by publication in either the Los Angeles Times or the Antelope Valley Press.

Further, the Court orders Plaintiff to lodge a proposed Order in conformity with the ruling on or before July 20,

2026.

Further, on the Court's own motion, the Court continues the Case Management Conference, and the Order to Show Cause Re: re why sanctions should not be imposed due to Plaintiff's failure to file a proof of service of the summons and complaint, from August 12, 2026 to November 30, 2026 at 8:30 A.M. in Department 207.

Plaintiff shall provide notice of the Court's orders and file the notice with a proof of service.

DATED: July 9, 2026 _____/s/_____

Michael E. Whitaker

Judge
of the Superior Court

[1] A noticed hearing on an Application for Publication is unnecessary. (See *Rios v. Singh* (2021) 65 Cal.App.5th 871, 883 ["an application for an order of publication of the summons may be made at an ex parte hearing"].)

[2] In the future, counsel should review and edit declarations submitted to a court as the declaration herein had a number of misspellings.